

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
JULY 15, 2026
8:30 a.m.

1. CARLOS FRANCISCO MORALES V. KEELY JORENE MORALES

25FL1243

This matter is before the court for hearing of the Request for Order (RFO) filed by the Respondent on June 03, 2026, seeking spousal support and \$7,500 in attorney fees and costs. Respondent concurrently filed an Income and Expense Declaration (I&E), as well as a declaration from her attorney. Proof of service filed June 08, 2026, shows the RFO and supporting documents were electronically served upon Petitioner that same day.

On July 01, 2026, Petitioner filed a Responsive Declaration (with a supporting declaration attached thereto) and personally served a copy upon Respondent the same day. Petitioner's most recent I&E was filed on June 02, 2026, and served upon Respondent that day via mail according to the proof of service, also filed June 02, 2026.

Respondent's moving papers indicate that she wishes to consolidate the child support matter with the spousal support matter. There is currently no stipulation in the court's file. Because a child support hearing is scheduled for July 20, 2026 (on the court's DCSS calendar, as DCSS is involved in this case), the court, on its own motion and in the interest of judicial economy, will continue the instant spousal support matter one week to July 22, 2026, to allow the parties time to confirm how they would like to proceed. The child support hearing will resolve some related issues (i.e., income, credits, etc.) Additionally, if the parties stipulate, the spousal support matter can be heard at the July 20, 2026, hearing, in which case, the court would then vacate the July 22, 2026, hearing.

With respect to the request for attorney fees, the court is inclined to deny such request without prejudice to further application. Respondent's I&E indicates there are no outstanding attorney fees.

TENTATIVE RULING #1: THE RFO IS DENIED IN PART. THE COURT DENIES THE RESPONDENT'S REQUEST FOR ATTORNEY FEES AND COSTS WITHOUT PREJUDICE TO FURTHER APPLICATION. THE COURT, ON ITS OWN MOTION AND IN THE INTEREST OF JUDICIAL ECONOMY, CONTINUES THE HEARING ON THE SPOUSAL SUPPORT MATTER TO 8:30 A.M., WEDNESDAY, JULY 22, 2026.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
JULY 15, 2026
8:30 a.m.

2. DANA R. BARTH, JR. V. SUSAN MARIE BARTH

25FL1188

This matter is before the court for hearing of the Request for Order (RFO) regarding potential sale of the marital residence filed by the Petitioner on June 29, 2026.¹ The RFO also included a request for order shortening time. The court ordered Petitioner to serve the RFO on or before July 01, 2026; and ordered Respondent to file her Responsive Declaration on or before July 06, 2026. Proof of service filed July 08, 2026, shows the RFO was electronically served upon Respondent on June 29, 2026.

Respondent filed no Responsive Declaration.

The court grants the Petitioner's RFO. Petitioner is directed to prepare and submit a Findings and Orders after Hearing (FOAH) reflecting this ruling for the court's signature.

TENTATIVE RULING #2: THE COURT GRANTS THE PETITIONER'S RFO. PETITIONER IS DIRECTED TO PREPARE AND SUBMIT A FINDINGS AND ORDERS AFTER HEARING (FOAH) REFLECTING THIS RULING FOR THE COURT'S SIGNATURE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

¹ On June 26, 2026, Petitioner filed an ex parte application for temporary emergency orders granting him exclusive control of the marital residence to permit the sale of said property. The court denied the request for temporary emergency orders but set the matter for hearing on July 08, 2026, to be heard concurrently with the instant RFO. The July 08 hearing was subsequently continued to July 15, 2026.